

SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

Present:

Justice Shahid Bilal Hassan
Justice Shakeel Ahmad

Civil Petition No. 4753 of 2025.

*(Against the judgment dated 02.09.2025,
passed by the Federal Service Tribunal,
Islamabad in Appeal No.
811(R)CS/2024)*

Federal Board of Revenue, through its ...Petitioner(s)
Chairman/ Secretary, Revenue

Versus

Irshad Hussain Qaisrani & another ...Respondent(s)

For the Petitioner(s) : Mr. Riaz Hussain Azam, AOR/ASC

Respondent No.1 : In person.

Date of Hearing : 08.01.2026

ORDER

SHAKEEL AHMAD, J.- In view of the order we propose to pass in this petition, we deem it unnecessary to state the points giving rise to the present petition in exhaustive detail, and a brief reference thereto suffices to appreciate the present controversy. The respondent No.1 was employed as Senior Clerk/ Inspector, and on account of illness, applied for retirement having completed more than 31 years of qualifying service; however, his application was not considered by the petitioner-department. Subsequently, pursuant to the petitioner-department's directions, he appeared before a Medical Board for examination. The Board opined that the respondent No.1 was suffering from multiple diseases and declared him unfit for further service. Thereafter, following an inquiry, he was compulsorily retired from service vide Notification dated 12.07.2024, with the observation that the period of his suspension be treated as extraordinary leave without pay, and pay and allowances paid to him during the period from 06.11.2023 till the imposition of major penalty be recovered from him. His departmental appeal remained unaddressed, leading him to

file an appeal before the Federal Service Tribunal, Islamabad (***“the Tribunal”***), which was partly allowed by judgment dated 02.09.2025 (***“the impugned judgment”***). Hence, this petition for leave to appeal.

2. Heard and record gone through.

3. It appears from the record that the impugned judgment was passed by the Tribunal on the appeal filed by respondent No.1, whereby the impugned order of the departmental authority was modified to the extent that respondent No.1 was held entitled to full salary and allowances in terms of Fundamental Rule 53. For the sake of completeness and ease of reference, the relevant portion of the impugned judgment is reproduced below:

“In view of the above legal position, we deem it appropriate to modify the impugned order dated 12.07.2024 to the extent that his period of suspension be treated with full pay and allowance in accordance with Fundamental Rule-53. No recovery could be made under the law for the payment made during the suspension period from the petitioner without withdrawing the suspension order....”

4. In view of the above factual backdrop, the sole question which requires determination by this Court is:

Whether a civil servant placed under suspension is entitled to receive full salary, allowance and service benefits during the period of suspension?

5. It is by now well settled that suspension is not removal, dismissal or termination from service. Rather, it is an interim measure, which merely suspends the performance of duties while the order of appointment or contract continues to subsist, and the relationship of employer and employee remains intact. Consequently, the civil servant continues to hold the post, albeit without performing duties. Once the contract of service continues to operate, all rights flowing therefrom, including entitlement to full salary, remain enforceable during the suspension period. The suspension does not extinguish the contract; therefore,

an employee cannot be deprived of lawful remuneration without express legal sanction. In this regard, Allah, the Almighty, says in the Holy Quran:

“O you who believe, fulfil your contracts”
(5:1).

6. When the Government issues an appointment order, it enters into a binding contract of service with the employee. Any unilateral withholding of salary, without the authority of law, is inconsistent with the terms and conditions of such appointment. Depriving a suspended employee of full pay or salary and service benefits is not only unjust and oppressive, but also contrary to the express mandate of Fundamental Rule 53 (b), which reads as follows:

“In the case of a Government servant under suspension, other than that specified in clause (a), he shall be entitled to full amount of his salary and all other benefits and facilities provided to him under the contract of service, during the period of his suspension”

7. Allah, the Almighty, commands justice and forbids oppression, as ordained in the Holy Quran (16:90). Similarly, the Holy Quran unequivocally prohibits the unlawful deprivation of property and lawful earnings, declaring that people should not devour one another's wealth (2:188) and should not withhold from others that which is rightfully theirs (11:85). In the same vein, the Holy Prophet Muhammad (PBUH) emphasized the sanctity of timely remuneration by commanding that the labourer be paid his wages before his sweat dries (*Ibne Majah*).

8. Islam mandates the fulfilment of contracts, protection of lawful earnings, and prohibition of exploitation and unjust deprivation. Suspension is merely an interim arrangement and does not amount to a finding of guilt. Imposition of financial deprivation before adjudication amounts to punishment without proof, which is repugnant to Islamic principles of justice. The verses of the Holy Quran and the Hadith quoted above clearly establish the obligation of timely and full payment of wages.

9. In the case of *Abdul Khaliq Bangash*¹, a learned Bench of this Court observed that if the suspension of a civil servant is “*not in order, at the most, he can make a claim for the balance of his unpaid salary*” The use of the word “balance” here indicates that the civil servant would be entitled to full salary after adjusting the subsistence allowance already paid during such period of suspension. Likewise, in the case of *I. A Sherwani*², while interpreting Rule 53 of the Fundamental Rules, the Shariat Appellate Bench of this Court held that, in light of the injunctions of Islam, a suspended Government servant must be allowed full salary along with all other benefits and facilities provided to him under the contract of service.

10. The upshot of the above discussion is that the Tribunal has rightly held that a suspended civil servant is entitled to full salary and other service benefits during the suspension period.

11. In view of the settled legal position and Islamic injunctions discussed above, no case is made out for interference by this Court. This petition is accordingly dismissed, and leave declined. No order as to costs.

Islamabad:
08.01.2026
Zia/ *

Approved for reporting

¹ *Abdul Khaliq Bangash v. The Secretary, Government of West Pakistan, Co-Operative Department, Lahore & 2 Others (1970 SCMR 103)*

² *Government Of N.W.F.P v. I.A.Sherwani (PLD 1994 SC 72)*